CITY OF OPA-LOCKA

"The Great City"

Clerk's Action Summary Minutes
Regular Commission Meeting
September 23, 2009
7:00 P.M.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Joseph L. Kelley called the meeting to order at 7:01 p.m. on Wednesday, September 23, 2009 in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida, 33054.

2. ROLL CALL:

The following members of the City Commission were present: Commissioner Dorothy Johnson, Commissioner Rose Tydus, Vice Mayor Myra L. Taylor, Commissioner Timothy Holmes and Mayor Joseph L. Kelley. Also in attendance were: Interim City Manager Bryan K. Finnie, City Attorney Burnadette Norris-Weeks, and City Clerk Deborah S. Irby.

3. INVOCATION:

The Invocation was delivered by Mayor Joseph L. Kelley.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

Mayor Kelley announced that the City Commission would go into an attorney/client session to consider settlement negotiations in the following case: Steven Barrett vs. City of Opa-locka, case number 06-04499CA23. In attendance were: Mayor Joseph L. Kelley, Vice Mayor Myra L. Taylor, Commissioner Timothy Holmes, Commissioner Dorothy Johnson, Commissioner Rose Tydus, Interim City Manager Bryan K. Finnie, City Attorney Burnadette Norris-Weeks, outside legal counsel Michael T. Burke and court reporting services. This attorney/client session was closed to the general public.

Upon conclusion of the attorney/client session, the meeting reconvened at 7:25 p.m.

5. APPROVAL OF AGENDA:

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

Request to amend the agenda to include the following resolutions under agenda item 12 (new items):

12-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, GRANTING APPROVAL FOR A "STOP THE VIOLENCE" ROADSIDE MARKER IN COMMEMORATION OF RICHARD FELIPE, A FORMER RESIDENT OF THE CITY OF OPA-LOCKA WHO WAS SHOT AND KILLED ON MAY 3, 2008, ON OR ABOUT THE ADDRESS OF 120 DUNAD AVENUE. *Sponsored by J.K.*

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to amend the agenda to include the above resolution as item 12-1.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

12-2: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING AND AUTHORIZING A FUNDING REQUEST MADE BY YOUTH CO-OP, INC. FOR ITS EMPLOYMENT ASSISTANCE CENTER IN THE AMOUNT OF TEN THOUSAND DOLLARS ($10,000.00), PAYABLE FROM ACCOUNT NO. 19-519554. *Sponsored by D.J.*

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to amend the agenda to include the above resolution as item 12-2.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

12-3: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ISSUE A REQUEST FOR PROPOSALS (RFP) FOR THE DESIGN AND BUILD OF ROADWAY IMPROVEMENTS ALONG ALI-BABA AVENUE. *Sponsored by C.M.*

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to amend the agenda to include the above resolution as item 12-3.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

12-4: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING A ONE (1) YEAR RENEWAL OPTION FOR AUDIT SERVICES PURSUANT TO THE CURRENT AGREEMENT BETWEEN THE CITY OF OPA-LOCKA AND HARVEY, COVINGTON & THOMAS OF SOUTH FLORIDA, LLC, BEGINNING OCTOBER 1, 2009 AND ENDING SEPTEMBER 30, 2010. *Sponsored by C.M.*

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to amend the agenda to include the above resolution as item 12-4.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

Commissioner Holmes withdrew agenda item 14A1 which was placed on the agenda in error.

Commissioner Johnson pulled 1, 2, 3, 6, 11, 12, and 14 from the Consent Agenda to be discussed separately under agenda item 11 (action items).

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

7. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

Starex Smith of the City of Opa-locka Parks & Recreation Department came forward along with staff and youth participants to thank the Commission for their support and dedication to the youth in the community.

8. APPROVAL OF MINUTES:

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to approve the minutes of the Regular Commission Meeting of September 9, 2009.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

9. DISTRICT ONE - COUNTY COMMISSIONER REPORT:

10. PUBLIC PRESENTATION:

10a. CITIZENS' FORUM:

1. Alvin Burke of 540 Sharar Avenue, Opa-locka, Florida appeared before the City Commission and voiced his concerns about a previous Ethics Commission complaint against Commissioner Rose Tydus relating to her conducting personal business with Waste Management. The issue came up in the past for the city to pay the attorney fees in this case and after submitting a public records request, he found out that the attorney fees were paid by the city although Commissioner Tydus was not representing the citizens of Opa-locka. Additionally, during that same year, not only did she conduct business with Waste Management but she voted for Waste Management to get the contract with an increase in the solid waste collection and disposal fee by approximately $1,000,000.00.

Being of the opinion that the attorney fees should have not been paid with the taxpayers money, he asked, who authorized the City Manager to make the payment?

Commissioner Tydus thanked Mr. Burke for his misrepresentation and stated that she would present the true facts in this matter at the next regular commission meeting because there were no charges made against her. She said all fees paid to her attorney were according to the city's Code of Ordinance and there was nothing that has not been done as far as representation is concerned by every commissioner sitting there and those before them charged by the Ethics Commission or anyone else to have legal representation. She reiterated that she would present the facts at the next commission meeting according to the law and according to public record of which Mr. Burke did not address.

2. John Gregory Eaton of 1046 Jann Avenue, Opa-locka, Florida, came forward and thanked the Commission for the great job being done throughout the community. After speaking before them during the last commission meeting regarding unemployment, he was referred to Sylvia Daughtrey at Youth Co-op and is happy to report that with the assistance of Mrs. Daughtrey he is now employed full time.

3. Sylvia Daughtrey of Youth Co-op, 780 Fisherman Street, Opa-locka, Florida, came forward and thanked the City Commission for their support with the resolution for the funding request for Youth Co-op.

4. Manuel Rivera of 936 Opa-locka Boulevard, Opa-locka, Florida, appeared before the City Commission and expressed his concerns in terms of the lack of and the importance of having a Hispanic representative; the fact that many of the Hispanics voted for Myra Taylor during the election which played a huge part in her victory; the landscaping company that hired African Americans; his request to meet with the Chief of Police for several months but to no avail; and the need for the Commission to meet in a private session.

Mayor Kelley explained that while there may not be any Hispanics on the dais all citizens are important to the Commission. He directed the City Manager to make sure the police department addresses Mr. Rivera's concern in addition to having someone explain the shade meeting process.

Commissioner Holmes explained the process and requirements for becoming a candidate for the office of Mayor/Commission for the City of Opa-locka.

5. Jacquelyn (inaudible), resident on Peri Street, Opa-locka, Florida, appeared before the City Commission representing the Northwest Neighborhood Watch to thank everyone for how well the police department was working. Additionally, she spoke in support of the resolution (agenda item 15-14) to initiate a lawsuit against GFM Operations, Inc. for failure to comply with payment arrangements for past due balances owed to the city.

6. Steven Barrett of 630 Sharar Avenue, Opa-locka, Florida, came forward and thanked Commissioner Holmes for taking the leadership role in dealing with the water & sewer in this community. Additionally, he thanked the Commission for following Commissioner Holmes to make this happen.

He further thanked Mayor Kelley for sponsoring the resolution to increase the hardship fund and for realizing the need of the citizens of this community during this difficult time.

7. Pete Thompson of 2000 Service Road, Opa-locka, Florida, came forward as owner of the car wash on NW 22nd Avenue and Service Road. After presenting his concern at a previous meeting relating to the sewer charges at his business, Mr. Thompson met with the City Manager; however, the City Manager never contacted him again regarding this issue. Although there's no sewer at that location, Mr. Thompson advised that the city is still charging him.

Being aware of the fact that Mr. Thompson was before the Commission about the same issue in the past, Mayor Kelley was under the assumption that this was being addressed through the City Manager's Office.

Manager Finnie explained that Mr. Thompson is absolutely correct and should not be charged for sewer; however, he is still trying to figure out a solution for Mr. Thompson and the magnitude of that problem. He indicated to Mr. Thompson that he would get back with him after the budget process.

Mayor Kelley expressed the importance and need to communicate and follow through with residents. He directed the City Manager to keep the Commission abreast of this issue.

Vice Mayor Taylor suggested that the City Manager discontinue charging Mr. Thompson for sewer until the issue is resolved.

8. Tony Brown, resident of Villa Francine Townhouse community at 2762 NW 131st Street, Opa-locka, Florida, appeared before the City Commission concerning the ongoing issues at the development. Of concern was the contamination on the property which according to DERM is unacceptable for humans to be in that area. The homeowners at Villa Francine Townhouses have come before the Commission on many occasions including meetings with the previous City Manager and a meeting with the current City Manager and the Mayor. He asked, what is the city doing to address this issue?

Acknowledging the fact that Mr. Brown had been before the Commission too many times, Mayor Kelley said he did met with Mr. Brown under the tent along with the City Manager in which the City Manager shared some things he was going to do. At that time there were some simpler requests that to his understanding were addressed. He said he thought there was ongoing communication to make sure the residents were aware of what the city was doing.

Manager Finnie acknowledged that he did attend a meeting once but his staff was in contact on a regular basis with the residents at Villa Francine. The city did complete some of the minor requests; but the long term solution is to include Villa Francine in the NSP 2 application. The city has applied for millions of dollars to purchase those properties from residents and have them relocate within the City of Opa-locka. Upon speaking to John Renfrow of DERM, he understood that DERM is being more aggressive with the project at this point and time. He said that the bottom line is that the property is in the City of Opa-locka and there are contamination issues on the property. Because this project was funded with county money, DERM is moving forward in court to go after the developer.

Although Mayor Kelley understood what was taking place, he asked, was this information communicated to the residents at Villa Francine as to what the city is doing and the strategy?

Octavian Spanner, Director of Community and Economic Development for the City of Opa-locka came forward and stated that the answer to Mayor Kelley's question would be "no".

Mayor Kelley expressed his frustration with the lack of communication between the city and the residents at Villa Francine.

Manager Finnie informed the Commission that staff did meet with the attorneys representing the homeowners at Villa Francine and the information was related to them as to the city's plans to resolve this issue.

Commissioner Johnson voiced her concern about the well being of the residents at Villa Francine due to the contamination. The city must make sure to communicate with those individuals including the president of the homeowners association, but at this point the attorney needs to get involved and this must be a priority. She said that the city should get the ball rolling not later than Monday, September 28, 2009 because of the children involved. She directed that the City Attorney get engaged in this matter because it's been going on for over two years.

Commissioner Holmes recalled asking about the owners of the property in the past when this issue came up. He suggested that the city go after the owners, but, if the city doesn't know who the owners of the property are, then he could see why the process had taken so long. He directed the City Manager find out who the owners of the property are and take necessary action to address this matter.

9. Eldridge Rutland of 2766 NW 131st Street (Villa Francine), Opa-locka, Florida, appeared before the City Commission and stated that Mr. Brown had forwarded all documents regarding Villa Francine which includes the property owner. After speaking with DERM regarding the condemned buildings, they indicated that if the buildings come down then there wouldn't be any contamination. He suggested that the city demolish the condemned buildings so that they can take over the homeowners association.

Commissioner Holmes disagreed in terms of the city demolishing the condemned buildings due to the fact that the owner would go after the city.

Being of the assumption that the city was headed in the right direction in terms of communication, Mayor Kelley made it clear that the Commission wants this issue resolved. He directed the City Manager to get all the necessary information and make sure there is communication to keep the residents informed as to what is going on.

Commissioner Holmes suggested that Mr. Rutland and Mr. Brown meet with him.

Mayor Kelley directed the City Manager to meet with Mr. Rutland and Mr. Brown the following day. Manager Finnie agreed.

11. ACTION ITEMS (items from consent agenda pull list):

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO INCREASE THE LIMITS OF THE CITY'S HARDSHIP ASSISTANCE PROGRAM TO TWO HUNDRED DOLLARS ($200.00). *Sponsored by J.K.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above resolution.

Commissioner Johnson asked, does the assistance program apply to both residential and commercial and what the limit is for receiving this assistance?

Mayor Kelley advised that this resolution does not include commercial customers but only residential customer. The original amount for the hardship assistance program is $100.00 and this resolution will increase that amount to $200.00.

Commissioner Johnson stated for the record that the City's Hardship Assistance Program is only for residential customers.

Manager Finnie stated that the City's Hardship Assistance Program is available to residential customers once per year.

Commissioner Johnson requested a copy of the criteria in place for this program. Additionally, she requested that this information is made available on the city's website.

Vice Mayor Taylor indicated that she is in support of the resolution; however, she would like to know how the criteria is determined and whether the program is for homeowners or renters.

Mayor Kelley advised that the assistance program is available to any residential customer with a utility bill.

Of concern to Commissioner Holmes was the fact that the city spend $15,000.00 last year at the $100.00 limit for the City's Hardship Assistance Program and this resolution would increase the limit to $200.00; therefore, an additional $15,000.00 would be needed to bring that total to $30,000.00. He asked, where would the additional money come from?

Manager Finnie explained that the amount budgeted for last year and this year is $15,000.00; however, if additional money is needed to fund the hardship program then that money will come from the water utility fund. That would have to be brought before the Commission for authorization.

Mayor Kelley explained that the amount budgeted for is $15,000.00 and it would have to come back to the Commission before that amount could be exceeded.

Vice Mayor Taylor shared the same concern as Commissioner Holmes and thought the additional be included in the budget as oppose to having to come back to shift monies once the $15,000.00 is expended.

Mayor Kelley said that the city had not gone over the $15,000.00 and although this year they may go over it, it still has to come before the Commission. He informed Vice Mayor Taylor that he tried to get this item on the agenda prior to the budget process but there were some challenges with getting it from the attorney so it took longer.

Vice Mayor Taylor asked, who determines "low income" and what department does it fall under?

Manager Finnie advised that the Hardship Assistance Program falls under the utility department and they will continue to manage the process.

Faye Douglas, Assistant Finance Director for the City of Opa-locka came forward and stated that the income requirements is provided on the customer application which would be provided to the City Commission.

Commissioner Tydus expressed her concern relating to having $15,000.00 in the budget for this particular item. If the limit is increased to $200.00 and with today's economy, she said there would be an increase of applicants but a decrease in the number of people to take advantage of the hardship program.

Mayor Kelley reiterated that $15,000.00 is budgeted for the city's Hardship Assistance Program; however, if the funds get depleted then the City Manager would have to bring it back before this Commission with the proper documentation for additional funds. Because of the seven month projections in the past, he believed that the city would have ample time should the need arise to make an adjustment through the budget amendment process.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

2. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, REQUESTING THAT THE STATE OF FLORIDA PERFORM AN INDEPENDENT AUDIT OF ALL CITY FINANCE MATTERS. *Sponsored by T.H.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above resolution.

Commissioner Johnson stated that she was in support of an independent audit; however, she doesn't want the State of Florida to perform the audit. Therefore, she requested a friendly amendment to the resolution for the city's current auditing firm to perform an independent audit of the city's finances.

Commissioner Holmes advised that his intention was to have the State of Florida perform an independent audit working along with the city's current auditor. He spoke with Roderick Harvey who agreed to work with the State of Florida on the independent audit.

Additionally, Mr. Harvey mentioned that there were some questions asked of the city but he has yet to receive the answers concerning the enterprise fund.

Commissioner Johnson suggested that the Commission give staff direction to make sure the auditor has all the information required; however, this is something the Commission can tend to with the auditors and staff prior to bringing in the State of Florida.

Commissioner Tydus understood Commissioner Holmes' concerns but said she was not sure whether the State of Florida would consider this type of request outside of the city being in a financial hardship or emergency situation.

Attorney Weeks said she could conduct some research because she didn't have any knowledge of that at this time; however, pursuant to Florida Statutes an audit is required every year which is what Mr. Harvey does. She stated that she would think any request by the state would be a very special request and probably done under extraordinary circumstances.

Vice Mayor Taylor agreed with Commissioner Johnson in that when the State of Florida comes in, they come in because either the Commission suspects something is wrong or they are coming in to find something wrong. She encouraged the sponsor to reconsider the resolution by allowing the auditor to do the job.

Due to the fact that the Commission sits as the Audit Committee, Mayor Kelley suggested, should Mr. Harvey's firm be retained for an additional year that the issue of not being able to obtain the required information be addressed through the Audit Committee. Should the information not be provided, he would then be in favor of bringing in the State of Florida.

Mayor Kelley asked, does the Commission sitting as the Audit Committee have the power to make the directive that the information is provided to the Auditor?

Attorney Weeks advised that the City Commission sitting as the City Commission can make that directive because the Audit Committee was for the selection process which was pursuant to the statute. The City Commission can make that decision independently of the Audit Committee.

Mayor Kelley recommended going the route as stated by the City Attorney.

Commissioner Holmes again stated that Mr. Harvey, the city's auditor, attempted to obtain information concerning the enterprise fund but to no avail. Additionally, the auditor indicated that there is a deficit in the budget. This is the reason why he sponsored this resolution so that the State of Florida can come in and perform an independent audit which is normally done for municipalities upon request by the City Commission.

At the request of Commissioner Johnson, Rose Henderson of Harvey, Covington & Thomas, LLP came forward to address the Commission.

Mayor Kelley asked whether it would be a problem for the auditing firm to come forward since there a pending item on the agenda for that firm.

Attorney Weeks advised that it would not be a problem if it is for information purposes.

Although Mr. Harvey was on a business trip in Atlanta, Ms. Henderson stated that Mr. Harvey asked her to relay the message to the Commission that he is willing to do the work and assist the State of Florida Auditor General and Office of Inspector General in terms of the independent audit.

Commissioner Tydus said she would like to hear what the Finance Director Ezekiel Orji has to say.

Manager Finnie said that he thinks Dr. Orji is concerned about the statements being made perhaps by the city's auditor. He was of the opinion that staff did not have to speak on this matter; however, he would welcome an auditor coming in and looking at the city's books. He said he would look into the statement in terms of the information requested that was not given.

In light of the discussion on this matter, Commissioner Holmes said he could see that this item would not pass; therefore, he pulled the resolution.

Commissioner Holmes withdrew his seconded and Commissioner Johnson withdrew her motion on the above resolution. This item was pulled from the agenda by the sponsor.

3. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ACCEPTING THE QUOTE FROM CARRAS COMMUNITY INVESTMENT, INC., IN RESPONSE TO REQUEST FOR QUALIFICATIONS ("RFQ") NO. 09-0713 FOR A "FINDING OF NECCESITY STUDY CRA DISTRICT AND COMMUNITY REDEVELOPMENT PLAN"; FURTHER AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE AN AGREEMENT WITH CARRAS COMMUNITY INVESTMENT, INC., FOR SERVICES CONSISTENT WITH THE RFQ IN AN AMOUNT NOT TO EXCEED FORTY NINE THOUSAND NINE HUNDRED SEVENTY FIVE DOLLARS ($49,975.00), PAYABLE FROM ACCOUNT NO. 37-515312. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

Commissioner Johnson inquired about the track record for this company and whether the amount reflected was fair for the services provided.

Octavian Spanner, Director of Planning and Community Development for the City of Opa-locka, came forward and briefed the Commission on the selection process in which six companies submitted proposals in response to the RFP. Based on the information and proposals submitted, this organization was selected as the first choice.

Commissioner Johnson directed the City Clerk to read into the record the other companies who submitted proposals.

In the past the city had gone through a CRA – Finding of Necessity; therefore, Vice Mayor Taylor asked, could the city use that study?

Manager Finnie advised that if the boundaries are the same and it's current within twelve months then the city can use that study.

Clerk Irby responded by reading into the record the companies that submitted proposals in response to the city's RFQ No. 09-0713 for the Finding of Necessity and Community Redevelopment Plan: Strategic Development Initiatives, Calvin, Giordano & Associates, Inc., Carras Community Investment, PMG Associates, Basile Baumann Prost & Associates, Inc. and Swan Development Advisors, Inc.

Commissioner Johnson stated that it was her understanding that Carras Community Investment met the minimum qualifications and that's the reason staff is recommending.

Mr. Spanner recalled what staff highlighted in the discussion was the fact that it is a consortium. This company will be working together on this matter by partnering with FIU.

Commissioner Johnson asked, is the amount a fair amount?

Manager Finnie replied that the amount is fair.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

6. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING MATCHING GRANT FUNDS IN THE AMOUNT OF TWO HUNDRED NINETY-THREE THOUSAND FOUR HUNDRED DOLLARS ($293,400.00) IN SUPPORT OF THE CITY'S GRANT APPLICATION FOR FUNDING FROM THE MIAMI-DADE COUNTY SAFE NEIGHBORHOOD PARKS (SNP) BOND PROGRAM FOR THE SHERBONDY PARK – PHASE II PROJECT. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above resolution.

In seeing this item as a financial impact to the city's budget, Commissioner Johnson asked, what line item in the budget are the matching funds coming from?

Manager Finnie said the money would come out of the money allocated in the capital improvement budget which is 12.3 Million Dollars; these are contained dollars for lift station 11A which services Sherbondy Park. The match would be the dollars spent on the lift station for Sherbondy Park which the city allocated $500,000.00.

Commissioner Johnson asked, when did the city receive the permits from DERM for the pump stations?

Fritz Armand, Public Works Director for the City of Opa-locka came forward and stated that the city is currently in the permitting process with DERM for the pump stations.

Commissioner Johnson asked, is this amount of money already set aside for this project?

Manager Finnie explained that this is how it was structured because he knew the city had committed years ago to support Sherbondy Park and the lift station; therefore, this match is built in the budget for a few years and this would allow the city to access the $293,000.00.

In terms of the firm previously selected for the Planning Council, Commissioner Johnson said she noticed that particular company bided for this project, and is also on the other project. She asked, how did that one company get a wide view of bidding on projects within the city? She was of the opinion that this is bias because it gives other companies unfair advantage. She believed that staff had sat down and reviewed documentation which had not been shared with others.

Manager Finnie said he would be very concerned had the committee come back to him with a recommendation that a particular firm would have gotten the CRA contract.

Commissioner Johnson expressed her concern with the firm even being considered in the process. She requested that the City Manager rescind all contracts with Calvin, Giordano & Associates, Inc. because they came in for one thing and now in looking at the agreement, she is not pleased with it. Additionally, staff should not be giving people advance information whether directly or indirectly. She said it is unfortunate for those companies who really stick to the bid process.

There being no further discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

11. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ACCEPTING THE QUOTE FROM DANA SAFETY SUPPLY,

INC., FOR THE INSTALLATION OF LAPTOP COMPUTER MOUNTS AND CENTER CONSOLES IN POLICE VEHICLES; FURTHER AUTHORIZING THE CITY MANAGER TO MAKE PAYMENT TO DANA SAFETY SUPPLY, INC., IN THE AMOUNT OF TWENTY NINE THOUSAND FIVE HUNDRED AND SIX DOLLARS AND SEVENTY-TWO CENTS ($29,506.72) FOR THE INSTALLATION OF LAPTOP COMPUTER MOUNTS AND CENTER CONSOLES, PAYABLE FROM ACCOUNT NO. 21-521645. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

Commissioner Johnson recalled several years back when the Opa-locka Police Department received new laptops for the police vehicles and now the city is looking at the computer mounts.

Chief James Smith of the Opa-locka Police Department stated that the mounts are to stabilize the laptops purchased; but IT would be in a better position to provide an explanation because it is his understanding that the majority of those laptops are not working.

Bernie Larralde, MIS director for the City of Opa-locka came forward and explained that several years back the city purchased 25 computers which are all in inventory but only about 8 are operational, the rest are in IT beyond repairs.

Commissioner Johnson expressed her concern relating to purchasing the laptops versus purchasing the computer and mounts as a package to make sure the mounts fit.

Mr. Larralde agreed with Commissioner Johnson; however, the computers were purchased under another administration and he had no control over that. Additionally, the computers come from DELL and the mounts come from a different company so they cannot be purchased as a package. With regards to the concern about the proper fit, he said the mounts were universal and will adjust to any laptop.

Commissioner Johnson asked, is the city going to come back to ask for laptops?

Mr. Larralde stated that the item for the laptops would come up as a part of a grant.

Commissioner Johnson asked, was the city already awarded the grant and was the mounting a part of that grant?

Mr. Larralde explained that the city already received the grant and the mounting was not a part of the grant.

Commissioner Holmes asked, would the current laptops as well as the new laptops fit the new mounts?

Chief Smith replied, yes.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

12. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ACCEPTING THE PROPOSALS FROM MIDTOWN TOWING, INC., KAUFF'S OF MIAMI INC., AND SEAY TOWING, INC. IN RESPONSE TO RFP NO. 09-0814 FOR TOWING AND STORAGE OF VEHICLES; FURTHER AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE AGREEMENTS WITH MIDTOWN TOWING, INC., KAUFF'S OF MIAMI, INC., AND SEAY TOWING, INC. FOR TOWING AND STORAGE OF VEHICLES FOR THE CITY OF OPA-LOCKA, FLORIDA, IN A CONTRACT FORM ACCEPTABLE TO THE CITY ATTORNEY. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

Previously Commissioner Johnson requested that the City Manager provide her with a listing of franchise fees for all companies; however, she said she didn't see in the documentation the franchise fee for towing. Also, several years back there were companies that owed the city franchise fees and she would like to know whether the companies listed in the resolution are in good standing.

Faye Douglas, Assistance Finance Director for the City of Opa-locka, came forward and stated that the current towing companies utilized pay the city $25.00 per vehicle towed. With this resolution, the City Attorney will be working on a contractual agreement for these three companies.

Commissioner Johnson asked, where is the money being paid by towing companies listed in the budget, what was projected and how much was collected?

Ms. Douglas said the money is reflected under miscellaneous revenue in the budget.

Commissioner Johnson was of the opinion that these types of fees should not be listed under miscellaneous revenue but have a separate line item. All monies, revenues, etc. coming in should have a line item.

Ms. Douglas stated that there is a separate line item in the general fund for towing revenues. She said she believed the projection of monies for towing is $6,000.00 and will be $6,000.00 next year until the city can get a pile of the revenues coming in with the

three companies. The city can always amend the budget mid year based on actual revenue coming in.

Commissioner Johnson stated that she would like to see towing fees paid as a franchise like in other municipalities.

Mayor Kelley suggested that Commissioner Johnson meet with the City Manager in terms of the franchise fee concept to bring back to the Commission because as it stands now, the city is paid $25.00 per vehicle.

With regards to towing and RFP's, Mayor Kelley expressed his concern in terms of the grading process and the individuals grading. He noticed some RFP's had the grading documentation attached and some didn't. He requested that the City Manager provide for all future RFP's, documentation to include the staff participating in the selection process and the concept used for the selection.

Commissioner Johnson requested that all contracts for resolutions be brought back to the Commission for approval.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

14. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, DIRECTING AND AUTHORIZING THE CITY ATTORNEY TO INITIATE A LAWSUIT AGAINST GFM OPERATIONS, INC. FOR FAILURE TO COMPLY WITH CHAPTER 13, ARTICLE XI, SECTION 13-213, OF THE CITY CODE OF ORDINANCES AND FAILURE TO COMPLY WITH THE INTENT OF CITY RESOLUTIONS 06-6984 AND 08-7275 REQUIRING MONTHLY PAYMENT FOR PAST DUE BALANCES WITH INTEREST BEGINNING OCTOBER 1, 2006 AND JUNE 1, 2008 RESPECTIVELY. *Sponsored by R.T.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Commissioner Tydus to pass the above resolution.

Commissioner Johnson asked, is the city currently in litigation with this particular case?

Attorney Weeks explained that this case is not in litigation; however, the City Commission passed two separate resolutions requesting payment and there was suppose to be some type of payment plan worked out with this business. From the sponsor, the intent was to initiate litigation due to the failure to comply with the city code and the two previous resolutions to pursue payment.

In conversation with the City Manager, Commissioner Johnson asked Manager Finnie did he not say that the city was receiving payments.

Manager Finnie replied, we are current for this fiscal year. The city has set up a new system where they collect monies on site.

Commissioner Johnson asked, if the payment is current then why would the city initiate a lawsuit?

Manager Finnie understood that this issue is something that was trying to be resolved from past delinquencies. He explained that GFM Operations, Inc. was paying, not on a regular schedule, but he believed sometime in 2008 another lawsuit emerged dealing with the city closing down their operations. At that point and time, it appears as though things went south due to corporate antagonism. He preferred to reach out to them and they were very open with the new management team working out a transaction until 2009 which worked out well. Hopefully, the city can continue to work with them and find a peaceful way to get the city's money back as soon as possible.

In an effort to get a better understanding of the issue, Vice Mayor Taylor stated so there was an agreement and the agreement was being adhered to until the shut down.

Apparently, Attorney Weeks explained that there was an agreement and to be payments were to be made, but the payments even after the agreement still weren't made which were delinquent. She said what the City Manager is talking about, the 90% or whatever more paid has to do with the payments for the current year. This resolution is for the past payments which are delinquent and nothing was ever paid from when the Commission passed the first resolution in 2006 and second one in 2008.

Vice Mayor Taylor asked, what is the City Manager saying that is current?

Manager Finnie replied, fiscal year 2009 is current. He said that there are two payment streams that the city is dealing with; one being the current payments paid for this year and the second is on the agreement(s) approved previously which for a number of reasons have not been adhered to.

Commissioner Holmes asked, is the city in litigation with the flea market?

Manager Finnie replied, yes.

Commissioner Holmes asked, is the above resolution a part of that litigation being held up until the litigation happens?

In discussions in this process, Manager Finnie explained that the city had put on the table negotiating a resolution which may include some form of settlement.

Commissioner Holmes was of the opinion that this item should not be on the agenda due to the pending litigation with the flea market. This resolution should be deferred until the litigation is resolved.

Attorney Weeks understood the question to be "is this case in litigation". She said the city is in litigation in something else but that has nothing to do with this issue.

Commissioner Holmes disagreed with the Attorney Weeks and stated that the litigation does have to do with this issue because it is the reason why the money hasn't been paid. He suggested that this resolution be deferred until the litigation is over with.

Commissioner Tydus stated that one litigation has nothing to do with the other. If the City Manager is in conversation that has to do with litigation and has to do with legislation already adopted by the City Commission then he should have came back to them. Although this issue was not new to anyone other than perhaps Vice Mayor Taylor, she said from 2000 the city had two payment agreements. The original contract agreement from the flea market from its inception was for the flea market to collect the license fee from its vendors at the rate of $140.00 per year and the flea market is to pay $2,500.00 per year. The flea market collects from the vendors and is to give that money to the city but she doesn't know how that accountability came about perhaps it was on a trust basis. In 2006, it was discovered that they were delinquent in payment of these license fees collected which they had collected they just didn't give the city those funds. A payment agreement was made approved by this Commission; they were delinquent and didn't comply with that agreement. In 2008, the Commission revisited what was owed in an effort to be fair, reduced the amount and put them on another payment schedule. From that payment agreement and schedule, GFM Operations have not made one payment which is disrespectful to the residents, this Commission and the city as a whole. The city began in August 2009 to make collections from those vendors at the Flea Market collecting $45,000.00 from August 2009 through September 2009 which is current and has nothing to do with what was discovered and is delinquent from 2006 to 2009.

She referred to a memorandum from the City Manager dated September 9, 2009, which stated that as of that date the Flea Market owes the city $312,700.33 from 2006 to 2009 with two payment arrangement agreements of which they have not honored. Therefore, she suggested that the Commission not mix apples with oranges because the litigation made reference to has absolutely nothing to do with the monies owed; it has to do with code violations and whether or not those code violations were properly handled by the city.

Manager Finnie apologized to Commissioner Tydus in terms of his statements but he was asked in the discussions in mediation, did this item come up and the answer is "yes" and that is the truth.

Attorney Weeks reminded the City Manager that settlement discussions pursuant to mediation are confidential.

Vice Mayor Taylor asked, did the city attempt to speak with the Flea Market prior to proceeding with the lawsuit?

Manager Finnie replied, no.

Commissioner Johnson stated for the record that she had never seen the correspondence referred to by Commissioner Tydus from the City Manager dated September 9, 2009. She asked, is the city currently in litigation with the Flea Market and if so how would this item impact that?

Attorney Weeks explained that the Flea Market's attorney is going straightforward with their case and the city has attempted to go back to mediation but they have not been cooperative in that regard. She said Commissioner Tydus is correct is stating that this is completely separate from anything dealing with that lawsuit. She advised that whatever the Commission decided to do, this item has nothing to do with the pending litigation which deals with a totally different action and issue.

Commissioner Johnson asked, is Joseph Geller handling the case in litigation?

Attorney Weeks stated that Mr. Geller is handling the case; however, she went to mediation with Mr. Geller and the attorney for the Flea Market is going full force with trial. The Commission really needs to look at this totally apart and separate from that issue.

Commissioner Holmes reiterated that the money in the above resolution is in litigation and the City Attorney is wrong. He suggested that this issue be deferred until the litigation is over with.

Vice Mayor Taylor asked, is this item meshed in with the litigation case?

Attorney Weeks replied, no.

Commissioner Tydus said she didn't know how the resolution is meshed in with the case but based on what Commissioner Holmes just stated it sounds like the Flea Market is trying to use this $312,000.00 as leverage as far as the other case is concerned in payment thereof, which is total disrespect. She reiterated that one case had nothing to do with the other. The current litigation which has to do with code violations took place in 2007 and the agreement, payment plan and schedule was agreed upon in 2006 and then in 2008.

As stated by the City Attorney, Mayor Kelley stated that these are two separate issues and the Commission must decide whether they want to proceed with this resolution.

There being no further discussion, the motion passed by a 4-1 vote.

Commissioner Holmes	No
Vice Mayor Taylor	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

12. NEW ITEMS:

12-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, GRANTING APPROVAL FOR A "STOP THE VIOLENCE" ROADSIDE MARKER IN COMMEMORATION OF RICHARD FELIPE, A FORMER RESIDENT OF THE CITY OF OPA-LOCKA WHO WAS SHOT AND KILLED ON MAY 3, 2008, ON OR ABOUT THE ADDRESS OF 120 DUNAD AVENUE. *Sponsored by J.K.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

12-2: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING AND AUTHORIZING A FUNDING REQUEST MADE BY YOUTH CO-OP, INC. FOR ITS EMPLOYMENT ASSISTANCE CENTER IN THE AMOUNT OF TEN THOUSAND DOLLARS ($10,000.00), PAYABLE FROM ACCOUNT NO. 19-519554. *Sponsored by D.J.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

12-3: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ISSUE A REQUEST FOR PROPOSALS (RFP) FOR THE DESIGN AND BUILD OF ROADWAY IMPROVEMENTS ALONG ALI-BABA AVENUE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above the resolution.

Commissioner Johnson was in support of the above resolution with the understanding that there aren't any current vendors that staff would provide advance information to.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

12-4: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING A ONE (1) YEAR RENEWAL OPTION FOR AUDIT SERVICES PURSUANT TO THE CURRENT AGREEMENT BETWEEN THE CITY OF OPA-LOCKA AND HARVEY, COVINGTON & THOMAS OF SOUTH FLORIDA, LLC, BEGINNING OCTOBER 1, 2009 AND ENDING SEPTEMBER 30, 2010. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Vice Mayor Taylor, seconded by Commissioner Holmes to pass the above resolution.

There being no discussion, the motion passed by a 4-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Tydus	Yes
Commissioner Johnson	Out of room
Mayor Kelley	Yes

13. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

14. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING:

B. SECOND READING/PUBLIC HEARING:

C. RESOLUTION(S):

15. ADMINISTRATION:

CONSENT AGENDA:

4. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO AN INTERLOCAL AGREEMENT WITH MIAMI-DADE COUNTY REGARDING DEMOLITION ACTIVITY CONNECTED WITH THE NEIGHBORHOOD STABILIZATION PROGRAM (NSP). *Sponsored by C.M.*

5. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING VIOLENCE INTERVENTION AND PREVENTION SERVICES, INC. TO UTILIZE OFFICE SPACE WITHIN THE C.E.T. OFFICES IN THE CULTURAL ARTS CENTER, LOCATED AT 2105 ALI-BABA AVENUE; OPA-LOCKA, TO OPERATE THE "PARENTS RAISING SAFE KIDS" TRAINING FOR CITY RESIDENTS. *Sponsored by C.M.*

7. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ACCEPT AWARD OF GRANT FUNDS FROM THE DEPARTMENT OF JUSTICE FY 2009 EDWARD J. BYRNE MEMORIAL JUSTICE ASSISTANCE GRANT (JAG) IN THE AMOUNT OF FORTY FIVE THOUSAND THREE HUNDRED AND SEVENTY FIVE DOLLARS ($45,375.00) FOR THE CITY OF OPA-LOCKA POLICE DEPARTMENT. *Sponsored by C.M.*

8. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ACCEPT THE AWARD OF GRANT FUNDS FROM THE DEPARTMENT OF JUSTICE FY 2009 EDWARD J. BYRNE MEMORIAL JUSTICE ASSISTANCE GRANT (JAG) IN THE AMOUNT OF ONE HUNDRED EIGHTY SIX THOUSAND SEVEN HUNDRED AND THIRTEEN DOLLARS ($186,713.00). *Sponsored by C.M.*

9. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ACCEPT THE AWARD OF GRANT FUNDS FROM THE DEPARTMENT OF JUSTICE COMMUNITY ORIENTED POLICING SERVICES (COPS) HIRING RECOVERY PROGRAM (HRP) GRANT IN THE AMOUNT OF THREE HUNDRED AND THIRTY-FIVE THOUSAND SEVEN HUNDRED AND SEVENTY FOUR DOLLARS ($335,774.00) FOR THE CITY OF OPA-LOCKA POLICE DEPARTMENT. *Sponsored by C.M.*

10. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ACCEPT THE AWARD OF GRANT FUNDS FROM THE DEPARTMENT OF JUSTICE FY 2009 WEED AND SEED COMMUNITIES COMPETITIVE PROGRAM GRANT IN THE AMOUNT OF ONE HUNDRED THOUSAND DOLLARS ($100,000.00). *Sponsored by C.M.*

13. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, PIGGYBACKING THE CONTRACT BETWEEN THE STATE OF FLORIDA AND PATTERSON POPE, INC., ACCEPTING THE QUOTE FROM PATTERSON POPE, INC., AND AUTHORIZING THE CITY MANAGER TO EXPEND FUNDS IN THE AMOUNT OF EIGHTEEN THOUSAND NINE HUNDRED AND FIFTY SEVEN DOLLARS AND SIX CENTS ($18,957.06) FOR THE PURCHASE AND INSTALLATION OF SECURE WEAPONS STORAGE CABINETS, EVIDENCE LOCKERS AND SHELVING FOR EVIDENCE AND RECORDS STORAGE FOR THE OPA-LOCKA POLICE DEPARTMENT, PAYABLE FROM ACCOUNT NO. 21-521646. *Sponsored by C.M.*

The above consent agenda resolutions were read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the consent agenda resolutions.

The motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

As it relates to the resolution reference GFM Operations, Inc., Commissioner Holmes stated for the record that the Flea Market is suing the city for over One Million Dollars and as he previously stated the money associated with the resolution is separate from the litigation.

A. CITY MANAGER'S REPORT:

Manager Finnie briefly reported on the summer 2009 Intern Program and the water & sewer rates modifications (memorandum was provided to the Commission re: water & sewer rates). He advised that he would come to the Commission at the next commission meeting with an ordinance to address this issue. He is proposing a two year structure for the modification of the residential and commercial water & sewer rates. Within 6 months from the commencement of this program, he will seek permission for a utility study to adjust the residential rates. He continued by briefing the Commission on the proposed changes. The city is now in the process of testing its data to make sure the rates recommended would generate revenue that are realistic and attainable to support the water utility costs and operations; but also, to support a rate structure that people in this community can afford. Part of the city's waste structure is based on the cost of water, administrative expenses and projections on what the capital needs are over a ten year period. The capital needs are projected at $35,000,000.00. It is his belief that through grants and support from the state, the city can reduce the requirement of the city funding that $35,000,000.00. If the city can adjust that $35,000,000.00 down then they can realistically adjust what is needed in terms of reserve to lower the cost of water. Additionally, he recommended a 60 day amnesty program to look at all respondents and

give the opportunity for them to come in, pay a deposit and pay their water bill. After the 60 days, he will launch a block by block analysis, determine who's getting water and do everything within the law to retrieve the assets.

Since the Commission just received the memorandum on the water & sewer rates, Mayor Kelley suggested that they individually meet with the City Manager to address their concerns.

Vice Mayor Taylor asked, in terms of the water and sewer report, when is the proposed effective date?

Manager Finnie stated that the process would begin once the ordinance is brought forth which requires two readings; therefore, he is looking at the latter part of October.

Vice Mayor Taylor stated that if this ordinance is adopted then she would like to go back to something she originally asked the City Manager about, a rebate to all citizens. She asked whether the City Manager can recall her request for a resolution for a rebate.

Manager Finnie replied, yes.

Commissioner Johnson expressed her concern regarding staff receiving requests for water accounts turned off on the North end in the Miami Gardens area. She requested a report on the number of customers whose water was turned off along with their names and addresses. Additionally, she said she was concerned in terms of the city's procurement process and she would like the opportunity to sit with the City Manger because she is of the opinion that it should be outsourced.

She continued by saying that she spoke to the City Manger about the seniors and would like for him to get back with her on the Welcome Kit.

During the budget hearing, there was mention about $5,000.00 in the City Clerk's budget for a special election, she said the city had many special elections in the past and that cost was more than $5,000.00; therefore, she would like to know from the City Manager and City Clerk how they arrived to that figure.

Manager Finnie stated that he believed the discussion with the $5,000.00 had to do with the connection with the increase of the budget but he would have to pass this over to the City Clerk.

Commissioner Johnson agreed to bring this issue up under the City Clerk's Report.

She continued to voice her concern in terms of city vehicles with magnet city seals versus a permanent seal.

Manager Finnie asked whether she wanted to see the city seal painted on city vehicles.

Commissioner Johnson replied, yes.

Commissioner Holmes applauded the City Manger for the report on the water & sewer and he is hoping to get with him between now and the next commission meeting to discuss this. In terms of the amnesty program, if the city is aware of the individuals who are getting water without making payments, the city should consider going after them but he would further discuss this when he meets with the City Manager.

With regards to the RFP for solid waste collection & disposal, he asked why that item has yet to come before the City Commission.

Manager Finnie explained that there were two issues with the RFP; one of the respondents made a claim that there is something wrong with the process and he asked the City Attorney to review the process. Also, he is working with the City Clerk to review the notification process. He expected to have this completed by the following week and he already received recommendation for a committee of staff to review the RFP's.

Commissioner Holmes suggested that if the RFP process was followed then the City Manager should bring this item to the Commission for them to decide what needs to done and not just let it sit on the City Manager's, City Clerk's or City Attorney's desk so that everyone would know what is going on with the RFP's especially for the solid waste. He said he was told that Waste Management didn't submit a bid and he would hope that is not the reason the process is being held up.

As it relates to bids, Commissioner Tydus asked, is there a vendor list process in place where vendors apply to be placed on the list to be notified in addition to the advertisement for RFP's?

Manager Finnie stated that the city posts the ads and people respond.

Commissioner Tydus said she would like to see a vendor list process put in place.

She continued by saying that she was told there are individuals no longer employed by the city and have not been employed by the city for many years but yet the city continued to paid their benefits (i.e. health insurance, etc.). She requested a full report to include the names of the employees, date of termination, how much the city has paid out in benefits and what means can be taken to recover those funds.

Manager Finnie advised that the matter in question was under investigation by Internal Affairs.

Commissioner Tydus asked, when did the City Manager anticipate this investigation to be completed?

Manager Finnie said he would have to consult with Internal Affairs to find out where they are in the investigation.

Commissioner Tydus said she noticed quite frequently that police vehicles were parked in opposite directions so that they can lollygag and this must stop. She said she would get with the City Manager on the other administrative items.

Commissioner Johnson requested that the City Manager rescind the agreement with Prime Source Mortgage because the agreement is for 3 years and that can only be done by ordinance. Also, she is not convinced that the company is helping individuals from the City of Opa-locka with foreclosures.

As it related to Mr. Burke's presentation under Citizens' Forum relating to the $3,500.00 payment in attorney fees on behalf of Commissioner Rose Tydus, Commissioner Holmes stated that he had documentation that shows the fees were in fact paid along with documentation that the State of Florida indicated that the city was not liable to pay those fees. He said the documentation from the State of Florida was provided to the City Manager and City Attorney back during that time but for some reason the invoice then was $5,000.00. The invoice came back at $3,500.00 which the city paid and disregarded what the State of Florida indicated.

He continued by saying that Commissioner Tydus stated she would have all the information at the next commission meeting and he too will have all the documentation for the City Manager at the next commission meeting.

B. ACCOUNTS PAYABLE:

Ezekiel Orji, Finance Director for the City of Opa-locka came forward and advised that the Commission was provided with a report of all revenues information by accounts along with the check registers.

Commissioner Johnson requested to be provided with the number of city bank accounts along with the balances.

Mr. Orji agreed to provide that information.

16. OFFICIAL BOARD REPORTS:

17. CITY ATTORNEY'S REPORT:

Attorney Weeks provided an update on the issue with the police officers who had received a bonus and left the city before the specified period of time they were to remain with the City of Opa-locka. She asked for feedback from the Commission in terms of one of the officers who is offering a settlement in the amount of $4,500.00 to be repaid on a monthly payment plan.

Commissioner Johnson said she didn't have anything in writing to substantiate what the City Attorney had stated. She asked for the City Attorney's suggestion on this issue.

Attorney Weeks suggested that the Commission consider settling the $4,500.00, but do it in an accelerated way where the officer would have to pay more than the proposed monthly amount perhaps $400.00 per month.

Commissioner Tydus agreed that the $400.00 per month was fair. Commissioner Johnson recommended the amount of $200.00 per month.

Vice Mayor Taylor suggested that the City Attorney negotiate with the officer and try to increase the amount to a figure he can meet.

Mayor Kelley suggested that the City Attorney not discuss strategies at a commission meeting. In the future, he suggested that issues as such should be discussed with the Commission one on one and then come back with whatever was decided as a whole.

Commissioner Holmes agreed with Mayor Kelley that these types of issues should not be discussed at an open meeting.

Attorney Weeks stated that the only reason she brought this issue before the Commission was to expedite since it was less than $5,000.00 rather than have an executive session.

In the future, Commissioner Johnson directed the City Attorney's Office to bring back all agreements / contracts to the Commission that are approved as a part of resolutions and ordinances for final approval.

Commissioner Holmes stated for the record that the City Commission was suppose to go into an attorney/client session at 6:30 p.m. The three appointed officials are to be meeting to have things in order for this Commission but that is not happening.

18. CITY CLERK'S REPORT:

Clerk Irby advised the Commission of the possibility of having an election in 2010 due to the transition of going back to the paper ballots and the elections department request for the city to change its qualifying dates. She would provide an update on this matter at the next regular commission meeting.

Commissioner Johnson informed the City Clerk that whatever amount is needed for the special election should be forwarded to the City Manager for incorporation into the budget.

Upon receiving public records, she said she noticed that the City Clerk attested to all of the contracts which she doesn't believe should have been attested to, especially the contract for three years. She suggested that the City Clerk not attest to agreements or contracts if she didn't feel comfortable with it.

Vice Mayor Taylor asked, what is the City Clerk attesting to?

Clerk Irby stated that she attests to the City Manager's signature.

Vice Mayor Taylor stated that the City Clerk is attesting to the signature and not the body of the contract.

Clerk Irby reiterated that she attests to the City Manager's signature.

Commissioner Johnson further recommended that the City Clerk as the custodian of records for the City of Opa-locka be cautious to what is attested to.

Clerk Irby agreed that she had been cautious and hasn't attested to anything since Commissioner Johnson brought up this issue about two months ago.

Commissioner Johnson stated that just as the City Clerk's attest to documents, for example, the one with Creative Choice, the folio number was incorrect and that item never came back. Although the City Clerk is attesting to the signature, she said if there is something wrong then the City Clerk shouldn't attest to the document.

Commissioner Holmes agreed with Commissioner Johnson in terms of attesting to documents and that the City Clerk should read the body of the document.

Vice Mayor Taylor stated to the Commission that they are putting something on the City Clerk that is really not her responsibility. The City Clerk attests to signature and the body of the contract and how it is written, whether the folio numbers are right or wrong, is the responsibility of the attorney and the manager; but especially the attorney because she has to answer legally for the city. This is not a part of the City Clerk's job description because she attests through signatures only; therefore, she would not have her reading through the document which would bring her into legality. The City Attorney is responsible for what is in the contracts.

Commissioner Tydus agreed with Vice Mayor Taylor and added that for the most part contracts have to come before or are a part of a resolution or an ordinance and the proper way is that those contracts should be a part of the minutes. The minutes should include the clause "made a part of these minutes" and the contracts should be attached to the minutes approved. She stated that everyone needs to remain in their lane and there's no where in the code that gives the City Clerk the responsibility of any legal matters. The City Clerk is the official record keeper of the city attesting to signatures.

Commissioner Holmes stated that a lot has been said on this issue and the City Clerk knows a lot about the Charter and she is aware of the terms of a contract. The City Clerk is well aware of her responsibilities because she's been doing it for about 15 years.

Commissioner Johnson stated that she is in possession of some contracts that have not come before the Commission. Also, it would help to have the contract attached to the resolution or ordinance when it comes to the Commission for approval.

She further expressed the importance of the appointed officials meeting to discuss city issues in order to move forward. In terms of the bid process, Commissioner Johnson asked, is the City Clerk involved in the bidding process?

Manager Finnie replied, yes.

Commissioner Tydus asked, what is the City Clerk's involvement in the bidding process?

Manager Finnie explained that he brought legal in to look at legal sufficiency and he'd asked the City Clerk in moving forward to make sure the notification process is accurate.

For the most part, Commissioner Tydus stated that the notification is the extent of the City Clerk's participation in the bid process to make sure that it's advertised within the legal time frame, to receive and certify the bids.

Mayor Kelley directed the City Manager, City Clerk and City Attorney to meet. Additionally, he said he didn't want to receive anymore emails or memorandums on that internal stuff or he will be the one to sponsor a resolution to suspend the three appointed officials because it doesn't make sense for the Commission to spend all this time on items that should've been taken cared of by the professionals.

19. MAYOR/COMMISSION REPORT:

Commissioner Johnson stated to the Commission that at the next commission meeting she would have the evaluations for the three appointed officials to start the evaluation process.

20. OFFICIAL BOARD APPOINTMENTS:

21. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to adjourn the meeting at 10:21 p.m.

MAYOR

ATTEST:

CITY CLERK